County Council Meeting
Beaufort County, SC

Council Chambers, Administration Building
Beaufort County Government Robert Smalls Complex
100 Ribaut Road, Beaufort

Monday, February 23, 2026
6:00 PM

MINUTES

Watch the video stream available on the County's website to hear the Council's discussion of a specific topic or the complete meeting https://beaufortcountysc.new.swagit.com/videos/376145

1. Call to Order

Chair Howard called the meeting to order at 6:13 PM

Present
Chair Alice Howard
Vice-Chair Anna Maria Tabernik
Council Member David Bartholomew
Council Member Paula Brown
Council Member Logan Cunningham
Council Member Gerald Dawson
Council Member York Glover
Council Member Mark Lawson
Council Member Lawrence McElynn
Council Member Joseph Passiment
Council Member Thomas Reitz

2. Pledge of Allegiance and Invocation

Council Member Passiment led the Pledge of Allegiance and gave the invocation.

3. Statement of Compliance with FOIA

Chair Howard stated that public notification of this meeting had been published, posted, and distributed in compliance with SC FOIA.

4. Approval of Agenda

Motion: It was moved by Council Member Lawson, seconded by Council Member Passiment to approve the agenda.

Motion to Amend: It was moved by Council Member Passiment, seconded by Council Member Bartholomew, to amend the agenda to add Item #15 that County Council execute a letter of engagement to the law firm Howell, Gibson, and Hughes, PA to provide legal representation and advisory services in connection with matters presented to or before County Council, and that the point of contact will be the Chair of County Council.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion to amend passed 11:0.

Main Motion: It was moved by Council Member Passiment, seconded by Vice-Chair Tabernik to approve the agenda as amended.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The main motion passed 11:0.

5. Approval of Minutes

Motion: It was moved by Council Member Cunningham, seconded by Council Member Lawson to approve the minutes.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 10:0.

* Council Member Brown did not vote

6. Administrators Report

Please watch the video stream on the county's website to view the full report.
https://beaufortcountysc.new.swagit.com/videos/376145

7. Public Comment Period

Public Comments were taken.

8. Liaison and Committee Reports

Please watch the video stream on the county's website to view the full report.
https://beaufortcountysc.new.swagit.com/videos/376145

9. Approval of Consent Agenda

Motion: It was moved by Council Member Passiment, seconded by Council Member Cunningham to approve the consent agenda.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

CONSENT AGENDA

a. Items Originating from the Finance, Administration, and Economic Development Committee

1. Approval of Hawkers and Peddlers License Fees for 2026

The vote at the Finance, Administration, and Economic Development Committee Meeting on February 17, 2026 - 8:0

b. Items Originating from the Public Facilities and Safety Committee

1. Beaufort County Historical Society is seeking permission to place a historical marker on County property at Bladen and Boundary Street.

The vote at Public Facilities Committee on February 17, 2026 - 8:0

END OF CONSENT AGENDA

10. Agenda Items

a. Appointment of Michael Szczechowski to the Airports Board for a two-year term with an expiration date of February 2028.

Motion: It was moved by Council Member Cunningham, seconded by Council Member Reitz to approve the appointment of Michael Szczechowski to the Airports Board for a two-year term with an expiration date of February 2028.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

b. Appointment of Glenn Williams to the Bluffton Township Fire District Board for a four-year term with an expiration date of February 2030.

Motion: It was moved by Vice-Chair Tabernik, seconded by Council Member Cunningham to approve the appointment of Glenn Williams to the Bluffton Township Fire District Board for a four-year term with an expiration date of February 2030.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

c. Appointment of Bailey Kalvar to the Disabilities and Special Needs Board for a four-year term with an expiration date of February 2030, pending approval by the Governor’s Office.

Motion: It was moved by Council Member Bartholomew, seconded by Council Member Passiment to approve the appointment of Bailey Kalvar to the Disabilities and Special Needs Board for a four-year term with an expiration date of February 2030, pending approval by the Governor's Office.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

d. Appointment of Marilyn Mitchell to the Disabilities and Special Needs Board for a four-year term with an expiration date of February 2030, pending approval by the Governor’s Office.

Motion: It was moved by Council Member Bartholomew, seconded by Council Member Dawson to approve the appointment of Marilyn Mitchell to the Disabilities and Special Needs Board for a four-year term with an expiration date of February 2030, pending approval by the Governor's Office.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council

Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

e. Appointment of Michael Glosque to the Keep Beaufort County Beautiful Board for a four-year term with an expiration date of February 2030.

Motion: It was moved by Council Member Passiment, seconded by Vice-Chair Tabernik to approve the appointment of Michael Glosque to the Keep Beaufort County Beautiful Board for a four-year term with an expiration date of February 2030.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

f. Appointment of Angela Baldree, District 3 - to the Library Board for a four-year term with the expiration date of February 2030.

Motion: It was moved by Council Member Passiment, seconded by Vice-Chair Tabernik to approve the appointment of Angela Baldree, District 3 to the Library Board for a four-year term with an expiration date of February 2030.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member Passiment, and Council Member Reitz. The motion passed 10:0.

*Council Member McElynn dropped off the meeting

g. Appointment of Mary Olodun, District 7- to the Library Board for a four-year term with an expiration date of February 2030.

Motion: It was moved by Council Member Passiment, seconded by Council Member Cunningham to approve the appointment of Mary Olodun, District 7 to the Library Board for a four-year term with an expiration date of February 2030.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member Passiment, and Council Member Reitz. The motion passed 10:0.

*Council Member McElynn dropped off the meeting

h. Appointment of Jaquelyn Howard, District 8 - to the Library Board for a four-year term with an expiration date of February 2030.

Motion: It was moved by Vice-Chair Tabernik, seconded by Council Member Passiment to approve the appointment of Jaquelyn Howard, District 8 to the Library Board for a four-year term with an expiration date of February 2030.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member Passiment, and Council Member Reitz. The motion passed 10:0.

*Council Member McElynn dropped off the meeting

i. Appointment of Dahlia Handman, District 10 - to the Library Board for a four-year term with the expiration date of February 2030.

Motion: It was moved by Council Member Passiment, seconded by Vice-Chair Tabernik to approve the appointment of Dahlia Handman, District 10 to the Library Board for a four-year term with an expiration date of February 2030.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member Passiment, and Council Member Reitz. The motion passed 10:0.

*Council Member McElynn dropped off the meeting

j. Appointment of Joseph Maiorano to the Zoning Board for a three-year term with an expiration date of February 2029.

Motion: It was moved by Council Member Reitz, seconded by Council Member Cunningham to approve the appointment of Joseph Maiorano to the Zoning Board for a three-year term with an expiration date of February 2029.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

11. Ordinances for Third Reading

a. 2026/02: An Ordinance Authorizing the County Administrator to Execute the Necessary Documents and Provide Funding for the Purchase of Real Property Located at 1451 Ribaut Road (TMS No. R110 009 000 0031 0000) from Drayton-Parker Companies LLC in the amount of $700,000 plus closing costs. **PUBLIC HEARING**

The vote at Finance, Administration, and Economic Development Committee on January 20, 2026 - 9:0
The vote at First Reading on January 26, 2026 - 11:0
The vote at Second Reading on February 9, 2026 - 10:0

Motion: It was moved by Chair Howard, seconded by Council Member Bartholomew to approve third reading and public hearing of Beaufort County Ordinance 2026/02.

Vice-Chair Tabernik opened the floor for public comment.

No one came forward.

Vice-Chair Tabernik closed the floor for public comment.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

12. Ordinances for Second Reading

a. 2026/03: An Ordinance authorizing the acceptance of a drainage easement located on Leo Green Rd. **PUBLIC HEARING**

The vote at Public Facilities and Safety Committee on January 20, 2026 - 10:0
The vote at First Reading on February 9, 2026 - 10:0.

Motion: It was moved by Council Member Cunningham, seconded by Council Member Dawson to approve second reading and public hearing of Beaufort County Ordinance 2026/03.

Vice-Chair Tabernik opened the floor for public comment.

No one came forward.

Vice-Chair Tabernik closed the floor for public comment.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

b. 2026/05: An Ordinance authorizing the abandonment of a drainage easement recorded in Deed Book 3695 at Pages 3345-3347 & Deed Book 3695 at Pages 3348-3350 located off Gumwood Drive in northern Lady's Island. **PUBLIC HEARING**

The vote at Public Facilities and Safety Committee on January 20, 2026 - 9:0
The vote at First Reading on February 9, 2026 - 10:0

Motion: It was moved by Council Member Bartholomew, seconded by Chair Howard to approve second reading and public hearing of Beaufort County Ordinance 2026/05.

Vice-Chair Tabernik opened the floor for public comment.

No one came forward.

Vice-Chair Tabernik closed the floor for public comment.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

13. Ordinances for First Reading

a. 2026/06: An Ordinance adding a new Section 54-8 to the Beaufort County Code of Ordinances so as to prohibit and make unlawful the discharge of firearms in certain unincorporated areas of the county, to provide the penalty pertaining to such violations, and to provide certain expectations and limitations thereto.

The vote at Community Services and Public Safety Committee on February 3, 2026 - 6:2

Motion: It was moved by Council Member Dawson, seconded by Council Member Brown to approve first reading of Beaufort County Ordinance 2026/06.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Dawson, Council Member Glover, Council Member McElynn, and Council Member Passiment.

Voting Nay: Council Member Bartholomew, Council Member Cunningham, Council Member Lawson, and Council Member Reitz. The motion passed 7:4.

b. 2026/07: An ordinance amending the Zoning map for 5 acres (R300 016 000 0063 0000, R300 016 000 0064 0000, R300 016 000 0065 0000) from T3HN to T4VC.

The vote at Natural Resources Committee on February 3, 2026 - 6:0:1

Motion: It was moved by Council Member Passiment, seconded by Chair Howard to approve first reading of Beaufort County Ordinance 2026/07 for the following reasons: it is consisting with the goals of the Comprehensive Code and the purposes of the Development Code; it is not in conflict with the provisions of the Development Code and our Code of Ordinances; it does address a demonstrated community need; it is not required by changed conditions; it is compatible with existing and proposed use of land surrounding this land; it would not adversely affect nearby land; it would result in logical and orderly development patterns; it would not result in adverse impact on the natural environment (water, air, noise, stormwater management, wildlife, vegetation, wetlands, and the natural functioning of the environment); and it would result in development that is adequately served by public facilities (streets, potable water, sewer, stormwater management, solid waste collection and disposal, schools, parks, police, fire, emergency medical facilities).

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Dawson, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz.

Voting Nay: Council Member Brown and Council Member Cunningham. The motion passed 8:2:1

*Council Member Glover recused himself

14. Resolutions

a. 2026/05: A Resolution authorizing the County Administrator to execute the documents necessary and to provide funds to contribute to the procurement by the applicant, the Open Land Trust, for a conservation easement on property located in the Town of Hilton Head Island known as the Simmons Tracts (pin# R510 010 000 0008 0000, R510 010 000 0647 0000), not to exceed ($1,545,000).

Motion: It was moved by Council Member Reitz, seconded by Council Member Glover to approve Beaufort County Resolution 2026/05.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz.

Voting Nay: Council Member Brown. The motion passed 10:1.

b. 2026/04: A Resolution repealing Resolution 2024/54 and Resolution 2019/31 and replacing them with Resolution 2026/04 to revise the policies and procedures for processing applications for Beaufort County 3% Local Accommodations Tax Funds and 2% Hospitality Tax Funds.

Motion: It was moved by Council Member Cunningham, seconded by Council Member Brown to approve Beaufort County Ordinance 2026/04.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Lawson, and Council Member Reitz.

Voting Nay: Council Member Bartholomew, Council Member Glover, Council Member McElynn, and Council Member Passiment. The motion passed 7:4.

15. Additional Agenda Item

a. Approval of Howell, Gibson, and Hughes, PA for legal representation for County Council

Motion: It was moved by Council Member Passiment, seconded by Council Member Bartholomew that County Council execute a letter of engagement to the law firm Howell, Gibson, and Hughes, PA to provide legal representation and advisory services in connection with matters presented to or before County Council, and that the point of contact will be the Chair of County Council.

The Vote - Voting Yea: Chair Howard, Vice-Chair Tabernik, Council Member Bartholomew, Council Member Brown, Council Member Cunningham, Council Member Dawson, Council Member Glover, Council Member Lawson, Council Member McElynn, Council Member Passiment, and Council Member Reitz. The motion passed 11:0.

16. Adjournment

COUNTY COUNCIL OF BEAUFORT COUNTY

Alice G. Howard

BY: _____
Alice G. Howard, Chairman

ATTEST:

Sarah W. Brock

_____
Sarah W. Brock, Clerk to Council
Ratified: March 9, 2026